Montgomery County District Court

Cause No. 2024-CV-0046

Billy Jones, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 5, 2024
Plaintiff's counsel:	Candice Smith, Dunn & Acosta LLP

PARTIES

Plaintiff Billy Jones is an individual rseiding in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks coverage and benefits.

FACTS

On April 8, 2023, Plaintiff was driving through a signalized intersection in Houston when another vehicle entered the intersection and srtuck the side of Plaintiff's vehicle. The impact occurred with force sufficient to push Plaintiff's car out of its lane and damage the driver's side of the vehicle. Plaintiff reported the collision to Defendant promptly and provided the information requested under the policy. Plaintiff has since sought medical care for pain and restricted movement in the right shoulder, which was injured when the vehicle was struck. Defendant has not paid the benefits owed under the policy for Plaintiff's medical expenses, lost earnings, and vehicle repair.

NEGLIGENCE

The driver of the other vehicle failed to yield the right of way, failed to keep a proper lookout, and entered the intersection without regard to oncoming traffic, in violation of Texas traffic law. That driver's negligence was the proximate cause of the collision and of Plaintiff's injuries. Defendant, as the insurer responsible for covering Plaintiff's losses under the policy, owed Plaintiff a duty to handle the claim fairly and to pay covered benefits within the time required by the Texas Insurance Code. Defendant breached that duty by failing to investigate the claim adequately, failing to explain its position in writing, and delaying payment wihtout a reasonable basis.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff has suffered physical pain, medical expenses, lost wages, loss of use of the shoulder, and mental anguish. Plaintiff seeks recovery of economic and non-economic damages in the amount of $64,000.00, together with statutory interest, attorney's fees, and court costs as permitted by Texas law.